# IN THE NATIONAL COMPANY LAW TRIBUNAL
# NEW DELHI
# BENCH-III

C.P.(CAA)-12/ND/2023

**IN THE MATTER OF SCHEME OF AMALGAMATION :**

**AMONGST**

**DEVYANI AIRPORT SERVICES (MUMBAI) PRIVATE LIMITED**

**... Applicant No.1 /Transferor Company**

**AND**

**DEVYANI FOOD STREET PRIVATE LIMITED**

**... Applicant No.2 /Transferor Company**

**WITH**

**DEVYANI INTERNATIONAL LIMITED**

**... Applicant No. 3 / Transferee Company**

**AND**

**THEIR RESPECTIVE SHAREHOLDERS AND CREDITORS**

**Order Delivered On: 08.02.2023**

**Section: 230 to 232 of the Companies Act, 2013**

**Coram:**

**SH. BACHU VENKAT BALARAM DAS, Hon'ble Member (Judicial)**
**SH. RAHUL BHATNAGAR, Hon'ble Member (Technical)**

**Counsel for Applicant:** Mr. Saurabh Kalia, Advocate

## ORDER

## Per: BACHU VENKAT BALARAM DAS, MEMBER (JUDICIAL)

This Company Petition jointly filed by the Applicant Companies is coming before us for admission, fixing a date for hearing and final disposal of the Application as well as for a direction for publication to be effected and issuance of notices to the concerned authorities for filing objections, if any, to the Composite Scheme of Amalgamation (hereinafter, referred to as the **"SCHEME"**).

2. As per the averments, the Registered offices of all the Applicant Companies are located in Delhi and hence, falling within the territorial jurisdiction of this Bench.

3. From the case records, it is seen that the First Motion seeking direction for dispensing the meeting of Equity Shareholders, Secured Creditors and Unsecured Creditors was filed before this Tribunal in C.A.(CAA)-99/ND/2022 under Sections 230-232 of the Companies Act, 2013 and vide Order dated 11.11.2022 directions were issued by this Tribunal to dispense with the meetings of the Equity Shareholders, Secured and Unsecured Creditors of the Applicant Companies.

4. Thereafter, the present second motion petition has come up before us, for fixing a date of hearing, as well as for other consequential directions, in terms of the provisions of section 230 to 232 of the Act, read with Rule 16 of the Companies (Compromise, Arrangement and Amalgamation) Rules, 2016.

5. The petitioner company is hereby directed to comply with the following directions:

(i) The date of hearing of the Joint Petition filed by the Petitioners for the approval of the Scheme is fixed on 29.03.2023.

(ii) Notice of the hearing shall be advertised in the newspapers namely, "Indian Express" (English, Delhi edition) and "Jansatta" in Vernacular (Hindi, Delhi edition) not less than 10 days before the next date fixed for hearing.

(iii) In addition to the public notice, the Petitioner Company shall serve the notice of the Petition by all modes (Email, Speed Post etc.) on the following Authorities, namely,

- Central Government through Regional Director (Northern Region), Ministry of Corporate Affairs at MCA, B-2 Wing, 2nd Floor, Paryavaran Bhavan, CGO Complex, New Delhi-110003
- Registrar of Companies, NCT of Delhi & Haryana, Ministry of Corporate Affairs at4th Floor, IFCI Tower, 61 Nehru place, New Delhi-110019;
- Income Tax Department, at DCIT (HC Cell), Lawyer's Chamber Block No.1, Room No. 428 & 429 Delhi High Court, New Delhi
- Official Liquidator attached to the High Court of Delhi at Lok Nayak Bhavan, 8th Floor, Khan Market, New Delhi 110001;
- Such other Sectoral Regulatory Authorities who are likely to be affected by the Scheme within 7 days from the date of this

order. The said authorities are directed to send their representations if any, within 30 days from the date of receipt of such notice as per the provisions of sub-section 5 of Section 230 of the Companies Act, 2013.

(iv) Further, notices shall also be served to the objector(s) or to their representative, if any, as contemplated under Sub-Section (4) of Section 230 of the Act who may have made representation and who have desired to be heard in their representation along with a copy of the Petition and the Annexure filed therewith at least 15 days before the date fixed for hearing.

(v) The Petitioner Company shall at least 7 days before the date of hearing of the Petition file an affidavit of compliance in relation to paper publication effected as well as service of notices on the Authorities specified above including the Sectoral Regulators as well as to the objectors, if any.

(vi) Objections, if any, to the Scheme contemplated by the authorities to whom notices have been given, may be filed before the date fixed for hearing, failing which it will be considered that there is no objection on the part of the authorities to the approval of the Scheme by this Tribunal and subject to other conditions being satisfied as may be applicable under the Companies Act, 2013 and relevant rules framed there under.

(vii) The Petitioner Company shall comply with proviso to sub section (3) of Section 232 or proviso to sub section (7) of Section 230, of the Companies Act, 2013, as may be applicable under the circumstances, on or before the date fixed for hearing by filing the required certificate of Company's auditor.

(viii) The next date of hearing of petition shall be on 29.03.2023 for the consideration of the approval of Scheme of Amalgamation as contemplated between the Petitioner Companies.

6. The registry is also directed to issue notices to the authorities specified in above mentioned paragraph 5 (iii).

7. Let a copy of the order be served to the parties.

| | |
|---|---|
| **SD/-** | **SD/-** |
| **(RAHUL BHATNAGAR)**<br>**MEMBER (TECHNICAL)** | **(BACHU VENKAT BALARAM DAS)**<br>**MEMBER (JUDICIAL)** |